

Ronakkumar Champaklal Patel vs State Of Gujarat on 16 July, 2021

Author: Vipul M. Pancholi

Bench: Vipul M. Pancholi

R/CR.MA/11144/2021

ORDER DATED: 16/07/2021

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/CRIMINAL MISC.APPLICATION NO. 11144 of 2021

RONAKKUMAR CHAMPAKLAL PATEL

Versus

STATE OF GUJARAT

Appearance:

KUMAR H TRIVEDI(9364) for the Applicant(s) No. 1,2,3,4
for the Respondent(s) No. 2

PUBLIC PROSECUTOR(2) for the Respondent(s) No. 1

CORAM:HONOURABLE MR. JUSTICE VIPUL M. PANCHOLI

Date : 16/07/2021

ORAL ORDER

Heard learned advocate Mr.Kumar Trivedi for the applicants. It is submitted that marriage span of the respondent no.2- complainant with the applicant no.1-husband is more than 20 years. It is further submitted that the applicant no.1-husband has filed Hindu Marriage Petition No.4 of 2021 under Section 13 of the Hindu Marriage Act against respondent no.2-wife in the month of January, 2021 and thereafter the FIR in question has been filed against the present applicants. It is submitted that all the family members of the applicant no.1 are implicated in the FIR in question. The applicant no.2 is the father-in-law aged about 70 years and therefore impugned FIR is nothing but a gross abuse of the process of the Court.

In view of the above, Notice returnable on 11.10.2021. Learned Public Prosecutor waives service of notice for respondent-State. It is open for the Investigating Officer to proceed with the investigation, however, chargesheet shall not be filed without the prior permission of this Court against the applicants.

(VIPUL M. PANCHOLI, J) SRILATHA